

Planning Commission Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001

Laramie County Planning Commission
Prepared by the Laramie County Planning & Development Office
Laramie County, Wyoming

Thursday, April 11, 2024

3:30 PM

Commissioners Board Room

Call To Order

Chairman Caughey called the meeting to order at 3:30 p.m. Guests were welcomed to the meeting and the assembly joined in the Pledge of Allegiance.

Roll Call

Present	Jason Caughey, Jack Stadel, John Watkins, Natacha Gaspar
Excused	Mark Smith

Approval of Minutes

1. Consideration of Minutes of Proceedings for March 28, 2024.

[24 - 176](#)

Attachments: [PC 3.28.24 Draft](#)

A motion was made by Jack Stadel, seconded by John Watkins to approve the Minutes of the Proceedings for March 28, 2024. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Gaspar

Excused: Smith

Land Use:Variances/Board App./Plats

2. Public Hearing regarding a Zone Change from A-2 to MU for Tract 5, Mesa Tracts, Laramie County, WY.

[24 - 177](#)

Attachments: [PZ-24-00023 LCPC STAFF REPORT PKG 4.11.24](#)

Jason Arnold, Planning Manager, said that Inberg-Miller Engineers, on behalf of Trystin and Mike Green, has submitted a Zone Change Application for this property located in the Mesa Tracts Subdivision located at 8619 US HWY 30, near the intersection with Dell Range Road. The application asks to rezone the property from A-2 - Agricultural to MU - Mixed Use, which would allow commercial trailer sales to take place at the property while still also being used as a residence. A site plan will be processed administratively by the Planning Department following approval of the Zone Change.

The property is currently assessed as residential and is located within the A-2 - Agricultural Zone District. It is accessed on the north side from US Highway 30 and is bordered by US Highway 30 to the north, undeveloped right-of-way to the east, Tracts 25 and 26, Mesa Tracts 2nd Filing to the south, and a portion of Tract 6, Mesa Tracts and Tract 1, Long View Subdivision to the west.

Trystin and Mike Green were introduced and said that the types of trailers being sold would include utility and enclosed trailers.

Chairman Caughey opened the Public Hearing. Ray Martin, owner of adjoining tracts said his concerns are that eventually he will annex his property into the City and would create residential and commercial parcels. He asked that any development along there include adequate fencing so there was some barrier between the residences and other parcels. Mr. Arnold responded that buffering and landscaping will be addressed in the Site Plan approval process and that the proposal fits into the PlanCheyenne land use designation.

A motion was made by John Watkins, seconded by Jack Stadel to approve a Zone Change from A-2 to MU for Tract 5, Mesa Tracts, Laramie County, WY. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Gaspar

Excused: Smith

3. Public Hearing regarding a review and recommendation of the Preliminary Development Plan and a Subdivision Permit and Plat for Pita Ranch, 2nd Filing, situated in a portion of the N1/2 of the SE1/4 of Section 34, Township 14 North, Range 63 West, and a portion of Tract 1, Pita Ranch, Laramie County, WY.

[24 - 178](#)

Attachments: [PZ-24-00017,18 LCPC Staff Report 04.11.24](#)

Sonny Keen, Associate Planner, said that Steil Surveying, on behalf G & G Enterprises, has submitted Preliminary Development Plan and Subdivision Permit and Plat applications for this property located on the west side of County Road 146, and south of Iron Horse Road. The application has been submitted to subdivide the 40.63 combined acreage into seven (7) residential tracts averaging 5.25 - 8 acres each. These applications were filed concurrently which was allowable under the Laramie County Land Use Regulations in force at the time of submission. Both applications have been combined into one staff report for ease of presentation and discussion, with separate motions required on the two actions.

The current use of the property is residential, residential vacant land and is immediately adjacent to either residential, residential vacant, or agricultural land located in the LU - Land Use zone district. A portion of the mentioned property is unplatted while the other is platted as a portion of Tract 1, Pita Ranch.

Shane Hansen, applicants agent, was available to answer questions. Access will be off Road 146 down what is currently known as Tract 2, Wilson Acres. Tract 2 was turned into an easement many years ago and is for access into the back lots where all the property sits right now. It was recorded and dedicated to the public and has been maintained with things that have been built into the access easement. Road will be renamed and will take care of maintenance issues.

Chairman Caughey opened the Public Hearing for public comments. Jeffrey Boldt, attorney for adjoining property owners Tanner and Abigail Leuning said they are the owners of Tract 2, Wilson Acres, the easement property. They also own Lot 1, Block 1, Thunder Basin Estates, 4th Filing which is the terminus of that easement On the west side is their house. They have serious concerns, clearly there is a recorded easement and don't dispute that. While the easement talks about the responsibility for maintenance this action will go from one family to serving an additional seven families and before that construction traffic. There has been no attempt by the applicant to discuss future maintenance of roadway. Client asks that this application not be approved until the applicant talks about the needed improvements. Also they are concerned about the naming of the road since the applicant is not the owner of the easement and they don't particularly like the name selected.

Chairman Caughey closed the hearing. In response to public comments Shane Hansen said that the road will be built to County road standards all the way to Road 146 and no building permits will be issued until the roads are completed. Maintenance of the road will be maintained by the internal subdivision. As for naming of the road that was a recommendation of Laramie County since there were not enough points of addresses to use Road 146 and suggested the easement be renamed. Justin Arnold answered questions on naming a road. If all parties affected by the name change do not agree then the Commissioners would have to approve the name change. Setback requirements of current residence should not have issues for the existing home.

A motion was made by Jack Stadel, seconded by John Watkins, to approve the Preliminary Development Plan for Pita Ranch, 2nd Filing, situated in a portion of the N1/2 of the SE1/4 of Section 34, Township 14 North, Range 63 West, and a portion of Tract 1, Pita Ranch, Laramie County, WY and to adopt the findings of fact a of the staff report. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Gaspar

Excused: Smith

Recommendation of Pita Ranch, 2nd Filing Subdivision Permit and Plat

John Watkins moved, seconded by Natasha Gaspar to recommend approval of the Subdivision Permit and Plat for Pita Ranch, 2nd Filing to the Laramie County Board of Commissioners and adopt the findings of facts b and c of the staff report with the following condition:

1. A non-adverse D.E.Q. Chapter 23 recommendation is received prior to plat recordation.
2. A Road and Easement naming application needs to be approved prior to plat recordation.

Aye: Caughey, Stadel, Watkins, Gaspar

Excused: Smith

Adjournment

There being no further business the meeting was adjourned at 4:03 p.m.

CERTIFICATION

True and correct copy of the Minutes of the Proceedings for Thursday, April 11, 2024.

Approved by the Laramie County Planning Commission on Thursday, May 9, 2024.